ASHCOMBE WHITLOW LLP

Attorneys at Law | 00 Example Street, 0th Floor | Anytown, ST 00000

PRIVILEGED & CONFIDENTIAL

_____

Re: Engagement Letter and Fee Agreement – _____

Dear _____:

Thank you for selecting Ashcombe Whitlow LLP ("the Firm," "we," "us") to represent you ("you" or "Client") in the matter referenced above. This letter sets out the scope of our engagement and the basis on which we will charge for our services. Professional rules require that we put these terms in writing, and we find it helps both of us to have a clear understanding from the start.

1. Scope of engagement. We will represent you in the matter described above, including investigation, negotiation, and, if necessary, litigation through trial in the court of first instance. Our engagement does not include appeals, enforcement of any judgment, tax advice, or any other matter unless we agree in writing to expand it.

2. Staffing. Rowan Fakely will be the partner responsible for your matter. Associates, paralegals and other partners may work on the matter where that is efficient. We will try to staff the matter at the lowest rate consistent with the quality the work requires.

3. Fees. Our fees are based on the time spent on your matter, recorded in increments of one-tenth of an hour, at the hourly rates below. Rates are typically adjusted on January 1 of each year, and we will notify you of any change at least thirty days in advance.

Timekeeper	Hourly rate
Partners	$595
Senior associates	$425
Associates	$345
Paralegals	$185

4. Retainer deposit. Before we begin work you agree to deposit $_____ into our client trust account. We will apply the deposit to our final invoice and will refund any unused balance at the end of the engagement. We may ask you to replenish the deposit if our fees and costs are expected to exceed it.

5. Costs. In addition to our fees, you agree to pay the costs we incur on your behalf, such as court filing fees, deposition transcripts, expert witness fees, travel and courier charges. We will ask for your approval before incurring any single cost greater than $1,000.

6. Billing and payment. We will send you a detailed invoice each month showing the work

performed, the timekeeper, the time spent and the costs incurred. Payment is due within thirty (30) days. If invoices are not paid when due, we may withdraw from the representation, subject to court approval where required.

7. No guarantee. We will give you our best professional judgment, but we cannot guarantee the outcome of your matter. Any statement about likely outcomes is an expression of opinion only.

8. Conflicts of interest. We have searched our records based on the names you gave us and found no conflict of interest. Please tell us promptly if you learn of any other party with an interest in the matter so that we can update our search.

9. Termination. You may end our engagement at any time by written notice. We may withdraw for good cause, including non-payment or your failure to cooperate, subject to our ethical obligations. Fees and costs incurred before termination remain payable.

10. File retention. At the end of the engagement we will return any original documents you gave us. We will keep our file for seven (7) years, after which it may be destroyed without further notice unless you ask for it in writing before then.

11. Fee disputes. If a dispute arises about our fees or costs, you may have the right to arbitration under the state bar's mandatory fee arbitration program. If you do not use that program, you and the Firm agree that any fee dispute will be resolved by binding arbitration, and both of us give up the right to a jury trial on that dispute.

Client's initials: _____

If these terms are acceptable, please sign the acknowledgment below and return a copy to us with the retainer deposit. If we do not receive the signed letter within thirty days, we will assume you have decided not to engage us. We look forward to working with you.

Very truly yours,

ASHCOMBE WHITLOW LLP

By: _____

Rowan Fakely, Partner

CLIENT ACKNOWLEDGMENT

I have read and understand this engagement letter, I have had the opportunity to ask questions about it, and I agree to its terms.

_____ _____

Signature of Client *Date*

_____

Printed name

_____

On behalf of (if an entity)